

PRESENT

Mr. Justice Mustafa Zaman Islam

And

Mr. Justice Md. Atabullah

15.01.2024

Mr. A.B.M. Shahjahan Akanda Masum,
Advocate

...in person

Mr. Tushar Kanti Roy, D.A.G with

Mr. Md. Salim Azad, A.A.G with

Ms. Anis ul Mawa, A.A.G

..for the Respondents

The petitioner, an advocate of the Supreme Court of Bangladesh has brought to present an issue of considerable public importance, public health and significance by filing this Writ Petition under article 102 (2) of the Constitution of Bangladesh. In support that contention the learned Advocate submits that the petitioner is practicing Advocate who is a socially conscious public spirited person and is also involved in various social activities. This Writ Petition involves general public interests with regard to gross negligence and violation of human right and right to life guaranteed under Article 31 and 32

of the Constitution. He submits that on 08.01.2024, a 5 year old child passed away following a circumcision procedure conducted at United Medical College Hospital in the capital, Badda, the victim who was a nursery student at a private school in the city, due to negligence of respondent no.5, the victim had died and as such direction may be given for ends of justice.

Today, the petitioner filed a supplementary affidavit with prayer for modification of cause title and prays that added of victim's father Md. Shamim Ahmed as petitioner no.2 in the cause title and modification of prayer portion.

On going through the grounds set-forth in the Writ Petition thereof, we find prima facie case for issuing ***Rule nisi.***

Let a ***Rule nisi*** be issued calling upon the respondent nos.1-4 to

show cause as to why a direction should not be given upon them to take necessary steps to give compensation of tk.5,00,00,000/- (Five Crore only) by the respondent no.5 to the deceased family for gross negligence and violation of human rights and right to life guaranteed under Article 31 and 32 of the Constitution of the People's Republic of Bangladesh for causing death of a five year old child Ayaan who passed away following a circumcision procedure, resulted from wrong treatment by the doctors and negligence of the hospital (Respondent no.5), reported in all dailies and medias on 08.01.2024 (Annexure-A, A-1, A-2, A-3 and A-4) and as to why the registration of doctors who are responsible for the cause of death of the five year old child Ayaan should not be cancelled for causing professional negligence and/or such other or further order or orders passed as to this court may seem fit and proper.

The Rule is made returnable within 4 (four) weeks.

The Respondent no.2 is hereby directed to hold inquiry and submit report within 7 (seven) days upon the cause of death of the five year old child Ayaan passed away following circumcision procedure conducted by the respondent no.5.

The Respondent no. 2 is also directed to submit a list of license/unauthorized/unregistered hospital/diagnostic centre with clinic in Bangladesh within 1 (one) month and to file affidavit-in-compliance thereof before this court within specified time.

The petitioner is directed to put in requisites for service of notice upon the respondents through registered post and in usual course.

The prayer for adding the name of victim's father Md. Shamim Ahmed as petitioner no.2 is allowed.

The Office is directed to do needful.

Let this matter be placed in the list for further order on 15.02.2024.